

CV-24-008326 PAYNE, KELLIE vs MOCSE CREDIT UNION – Defendant Mocse Credit Union’s Motion to Stay Proceedings – GRANTED, and unopposed.

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: Despite the provisions of Code Civ. Proc. § 1294, as amended, the Court retains discretion to stay further proceedings in the interest of justice. (See St. Paul Fire & Marine Ins. Co. v. Amerisourcebergen Corp. (2022) 80 Cal.App.5th 1, 13-14). Therefore, based on the moving papers, and in view of the lack of opposition herein, the Court finds, in the interest of justice, that further proceedings in the instant action should be STAYED pending the determination of the appeal of the Court’s previous order denying arbitration.

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

Source SHA-256: 5531ac00dfdcf3f3f5d60310125255acadecdc2a0d7fc75331ce61476d4b877

CV-24-008326 – PAYNE, KELLIE vs MOCSE CREDIT UNION – Defendant Mocse Credit Union’s Motion to Stay Proceedings – GRANTED, and unopposed.

Despite the provisions of Code Civ. Proc. § 1294, as amended, the Court retains discretion to stay further proceedings in the interest of justice. (See St. Paul Fire & Marine Ins. Co. v. Amerisourcebergen Corp. (2022) 80 Cal.App.5th 1, 13-14).

Therefore, based on the moving papers, and in view of the lack of opposition herein, the Court finds, in the interest of justice, that further proceedings in the instant action should be STAYED pending the determination of the appeal of the Court’s previous order denying arbitration.